

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BARKIM MEEKINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOSE
MERCEDES, SHIELD #884 OF THE 44TH PCT., POLICE
OFFICERS JOHN DOE, JIM DOE, AND JAMES DOE
(FICTITIOUS NAMES BECAUSE THEIR IDENTITIES
ARE CURRENTLY UNKNOWN) ALL SUED
IN THEIR CAPACITIES AS POLICE OFFICERS AND
IN THEIR INDIVIDUAL CAPACITIES,

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 30, 2021

/s/ ROYCE RUSSELL

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34th Street 18 Fl.
New York, New York 10120
(718) 785-8890

SUMMONS

Index No.

Date Purchased:

Plaintiff designate Bronx
County as the Place of trial
The basis of venue is Bronx
County is the place where the
cause of action arose.

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

The New York City Police Dept.
New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer John, Jim and Joe Doe
New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Jose Mercedes
Shield #884
44th Pct.
2 East 169th Street
Bronx, N.Y. 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BARKIM MEEKINS,

VERIFIED COMPLAINT

Plaintiff,

Index No.

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOSE
MERCEDES, SHIELD #884 OF THE 44TH PCT., POLICE
OFFICERS JOHN DOE, JIM DOE, AND JAMES DOE
(FICTITIOUS NAMES BECAUSE THEIR IDENTITIES
ARE CURRENTLY UNKNOWN) ALL SUED IN THEIR
CAPACITIES AS POLICE OFFICERS AND IN THEIR
INDIVIDUAL CAPACITIES,

Defendants.
-----X

Plaintiff, Barkim Meekins, by his attorney, Royce Russell, Esq., R-SQUARE, ESQ.
PLLC., as and for a Verified Complaint allege as follows:

PARTIES

1. Upon information and belief and at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as "CITY" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief and at all times hereinafter mentioned the Defendant, the City of New York, hereinafter certified to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter respectively referred to as "NYPD", including all the Police Officers therein.
3. Upon information and belief, Police Officer Jose Mercedes, at all times hereinafter mentioned, and on the 30th day of November, 2020 was employed as a Police Officer by the "CITY" and/or "NYPD" and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
4. Upon information and belief, Police Officer John Doe, at all times hereinafter mentioned, and on the 30th day of November, 2020 was employed as a Police Officer by the "CITY"

and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department. Hereinafter referred to as ‘John’, named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned, and on the 30th day of November, 2020 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

5. Upon information and belief, Jim Doe, hereinafter referred to as ‘Jim’ named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned, and on the 30th day of November, 2020 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
6. Upon information and belief, James Doe, hereinafter referred to as “James” named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned, and on the 30th day of November, 2020 was employed as a Police Officer by the “CITY” and/or “NYPD”, was at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
7. Upon information and belief, other unknown Police Officers named herein in fictitious capacities as their names are currently unknown, all times hereinafter mentioned, and on the 30th day of November, 2020 was/were employed as a Police Officer(s) by the “CITY” and/or “NYPD”, and at all relevant times set forth below acted in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.
8. Hereinafter, the Police Officers present at the location set forth below are collectively referred to as “Officers and/or Defendants”.
9. The incident set forth below occurred in the vicinity of 1565 Townsend Avenue #3D, in the County of Bronx, in the State of New York, hereinafter referred to as “the location”, on November 30, 2020, at approximately 11:25 p.m.
10. At all relevant times hereinafter mentioned, Plaintiff Barkim Meekins, hereinafter referred to as “Meekins and/or Plaintiff” was a resident of Kings County, residing at 1565 Townsend Avenue #3D, Bronx, New York 10452.
11. The Plaintiff has filed a Notice of Claim advising the Defendants of the nature of the claims on or about January 21, 2021.

12. The Plaintiff has not been submitted to a 50H hearing, the “CITY” adjourned the hearing and never re-scheduled.
13. The Defendants have not offered to settle the Plaintiff claims. This action is brought within a year and ninety days of the date when the cause of action arose.

STATEMENT OF FACTS

14. On November 30, 2020 at approximately 11:25 p.m., Plaintiff was lawfully in his apartment located at 1565 Townsend Avenue Apartment #3D in Bronx County when the Defendants (Police Officers Mercedes, John, Jim and James) illegally entered his apartment.
15. The Defendants presented an arrest warrant for which Meekins stated that the stated person did not reside in his apartment. Defendants then proceeded by breaking down the front door of Meekins’ apartment and illegally and forcefully entered his apartment.
16. The Defendants were in plain clothes and not wearing any masks.
17. The Defendants did not present a warrant to Meekins or any police documents regarding him.
18. The Defendants pointed a gun and/or taser at Meekins for which Meekins recalls a red laser dot pointed at his forehead.
19. Meekins protested the illegal entry and asked for badge numbers. Meekins was then arrested for an alleged criminal allegation dated in 2019. No criminal actions were taken on that case. Meekins was nonetheless arrested and detained for one day before seeing a Judge and being released. Meekins appeared in Court numerous times and upon information and belief the case is pending.
20. It is hereby alleged, pursuant to CPLR §1603, that this action is exempt from the operation of CPLR §1601 from the operation of CPLR §1601, by reason of one or more of the exemptions provided in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL DEFENDANTS FOR FALSE DETENTION AND FALSE ARREST, THE
PLAINTIFF ALLEGES:**

21. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "20" with the same force and effect as if more fully and at length set forth herein.
22. That on the 30th day of November 2020, at the approximate time of 11:25 p.m., the Defendants, and their agents, servants and/or employees intentionally held, detained, falsely arrested and imprisoned the Plaintiff without any just cause or grounds therefore.
23. That the Plaintiff was held against his will under full force of arms.
24. That the Plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his detention, false arrest and false imprisonment by the Defendants, their agents, servants and/or employees and was forced to submit to having his freedom restricted and said imprisonment/detention was entirely against his will.
25. That the Defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine the Plaintiff's movement and freedom; and the Plaintiff was conscious of his confinement; and did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.
26. That by reason of the aforesaid false detention, false arrest and false imprisonment, the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said Plaintiff has been otherwise damaged.
27. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR BATTERY, THE PLAINTIFF ALLEGES:**

28. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "27" with the same force and effect as if more fully and at length set forth herein.
29. That commencing on the 30th day of November, 2020, at the time of 11:25 p.m. at "the location", the Defendant Officers Mercedes, John, Jim, and James, while acting within the

scope of their employment as police officers and as agents for the Defendant the "CITY" and "NYPD", without just cause or provocation illegally pat-down/searched the Plaintiff.

30. Upon information and belief, the officers had absolutely no reason or just cause to detain and batter the Plaintiff.
31. The battery, and physical contact was not privileged.
32. The battery took place while the Plaintiff had committed no crime.
33. That the Defendants, their agents, servants and/or employees, including the unknown police officers, acting as agents on behalf of the Defendant "CITY" and/or "NYPD," and within the scope of their employment, intentionally and willfully battered the Plaintiff, in that they had the real or apparent ability to cause imminent harm or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiff.
34. That said acts caused apprehension of such offensive contact to the Plaintiff and the Defendants caused such battery/assault in and about his body and limbs.
35. That by reason of the aforesaid intentional battery, the Plaintiff suffered offensive contact and/or psychological injuries to his body mind, and was otherwise damaged.
36. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE AGAINST THE "CITY", THE PLAINTIFF ALLEGES:

37. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "36" with the same force and effect as if more fully and at length set forth herein.
38. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendants named herein.
39. That as a result of their negligence, the above-named Plaintiff was falsely detained, illegally seized, illegally searched, falsely arrested, falsely imprisoned, maliciously prosecuted and had his constitutional and civil rights violated.

40. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST ALL NAMED DEFENDANTS FOR 42 U.S.C. §1983
VIOLATIONS, THE PLAINTIFF ALLEGES:**

41. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully and at length set forth herein.
42. By the aforesaid acts, the Defendant "Officers" individually and collectively have violated the Plaintiff's right: to privacy under the First and Fourteenth Amendments; to have his persons and property be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race, thereby giving rise to a cause of action pursuant to 42 USC §1983.
43. The conduct and actions of the named Defendant police officers, acting under color of law, in seizing the Plaintiff, and upon information and belief in searching the Plaintiff, in battering the Plaintiff, in intimidating the Plaintiff, in searching the apartment of the Plaintiff absent a warrant, and in falsely detaining the Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, et seq.
44. Each of the Defendant police officers' actions, individually and collectively deprived the Plaintiff of his rights including, but not limited to, the right to privacy of his person and/or property; under the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. §1983 et seq.
45. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Sections §1983 and §1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FIFTH THROUGH NINTH CAUSES OF ACTION: FOR VIOLATIONS
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. §§ 1983, 1985 AND
1986 AGAINST THE CITY OF NEW YORK**

46. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully and at length set forth herein.
47. That on or about the 30th day of November 2020, at approximately 11:25 p.m. at or near the "location," the "Officers" were present thereat as part of their regular and official employment as Police Officers for the Defendant, "City".
48. Plaintiff was lawfully and properly thereat when the "Officers" acting as agents, servants and/or employees of the Defendant "City", forcibly stopped, seized and searched the Plaintiff and his apartment absent just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity.
49. The Plaintiff was retaliated against by the Officers who illegally, seized, searched, battered, detained, arrested and imprisoned because he asked questions during the illegal entry of his apartment and requested to see the alleged warrant and the alleged arrest warrant regarding his arrest for his arrest.
50. Upon information and belief, the Officers were required to fill out a stop, question and frisk report or any report verifying their actions as well as procedure in an arrest.
51. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.
52. Defendants failed to activate their respective body cameras to record their actions and more specifically the arrest of Meekins.
53. Upon information and belief, the Officers fabricated a reason for forcibly entering Meekins' apartments and the bases for Meekins' arrest.
54. Further, the other named Officers present at the Plaintiff's arrest, failed to report the false arrest.
55. Likewise, when the Defendants "Officers" were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.

56. Upon information and belief, to date no disciplinary action has been taken against the offending Officers for engaging in said conduct or for failing to intervene, stop it or report it or have their body cameras activated at the time of the incident concerning Meekins.
57. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false Criminal Court Complaint for the purpose of falsely detaining, falsely imprisoning, falsely arresting and maliciously prosecuting the Plaintiff.
58. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of his rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983 and/or 1986.
59. That said acts constituted acts of cruel and unusual punishment and deprived the Plaintiff of his rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
60. That said acts constituted acts that violated the Plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
61. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
62. That Plaintiff, as an African American male, was deprived of his right to equal protection under the law and was targeted and his rights violated based on his race, a violation of the Equal Protection Clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
63. That the Officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene, stop and report, and the falsification of reports and evidence to deprive or hinder the Plaintiff's right to justice, and to injure him.
64. Upon information and belief, Police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.

65. The Officers herein conspired to deprive the Plaintiff of equal protection under the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
66. That the Plaintiff's false detention, false arrest, false imprisonment, battery, and violation of his constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which included excessive use of force; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest and prosecution, and injuries.
67. The Defendant "Officers" actions on November 30, 2020 were performed under the color of law and the policies, statues, ordinances, rules, practices and regulations of the City of New York, and they were performing to the detriment of the Plaintiff.
68. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, battered, assaulted, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sections 1983, 1985 and 1986 and the Constitution of the State of New York.
69. That by reason of the aforesaid, the Plaintiff was deprived of his liberty, lost income, battered, injured, and he was damaged.
70. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TENTH THROUGH THIRTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.
SECTION 1983, BY POLICE OFFICERS MERCEDES, JOHN, JIM, AND JAMES IN
THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK,
THE PLAINTIFF ALLEGES:

71. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully and at length set forth herein.
72. That at all times hereinafter mentioned, the Defendant "Mercedes" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
73. That at all times hereinafter mentioned, the Defendant "John" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
74. That at all times hereinafter mentioned, the Defendants "Jim and James" were employed by the Defendant The City of New York and/or The New York City Police Department and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
75. That at all times hereinafter mentioned, the Defendant "Officers," individually and collectively, were acting pursuant to orders and directives from Defendant, "City".
76. That during all times hereinafter mentioned, the Defendants "Officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth in this Complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Sections 1983 and 1986.
77. That the unlawful and illegal conduct of Defendants "Officers" deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- i. The right of the Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
 - ii. The right not to be discriminated against based upon the Plaintiff's race, creed, sex, or sexual orientation;
 - iii. The right to Due Process Law;
 - iv. The right to equal protection under the law; and
 - v. The right not to be subjected to cruel and unusual punishment.
78. That by reason of the aforesaid violations such as, seizure of Plaintiff's person, his false detention, battery, falsifying evidence, and discrimination, the Defendant Police "Officers" violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the Officers" and violated 42 U.S.C. §1983.
79. That as a direct proximate result of "the Officers" actions, the Plaintiff was physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
80. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
81. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FOURTEENTH THROUGH SEVENTEENTH CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985, BY POLICE OFFICERS MERCEDES, JOHN,
JIM, AND JAMES IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

82. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "81" with the same force and effect as if more fully and at length set forth herein.

83. That at all times hereinafter mentioned, the Defendant “Mercedes” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
84. That at all times hereinafter mentioned, the Defendant “John” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
85. That at all times hereinafter mentioned, the Defendant “Jim” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
86. That at all times hereinafter mentioned, the Defendant “James” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
87. That at all times hereinafter mentioned, the Defendants “Officers”, individually and collectively, were acting pursuant to orders and directives from Defendant “City”.
88. That during all times hereinafter mentioned, the Defendants “Officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth in this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.
89. That the Defendant “Officers” conspired to deprive Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to batter and to due process of law and equal protection of the law.
90. That by reason of the aforesaid violations such as, seizure and search of Plaintiff’s person, his false detention, false arrest/imprisonment, battery, malicious prosecution and falsifying evidence, and discrimination, the Defendant Police “Officers” violated Plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America and

provided to him in the Constitution of the State of New York, and laws thereto, “the Officers” and violated 42 U.S.C. §1985.

91. That as a direct proximate result of “the Officers” actions Plaintiff was detained, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
92. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
93. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney’s fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR AN EIGHTEENTH THROUGH TWENTY-FIRST CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICERS MERCEDES, JOHN,
JIM, AND JAMES IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

94. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "93" with the same force and effect as if more fully and at length set forth herein.
95. That at all times hereinafter mentioned, the Defendant “Mercedes” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
96. That at all times hereinafter mentioned, the Defendant “John” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
97. That at all times hereinafter mentioned, the Defendant “Jim” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

98. That at all times hereinafter mentioned, the Defendant “James” was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
99. That at all times hereinafter mentioned, the Defendants “Officers”, individually and collectively, were acting pursuant to orders and directives from Defendant, The City of New York.
100. That during all times hereinafter mentioned, the Defendants “Officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he or they had the ability or power to prevent or aid in the preventing of the commission of the same the “Officers” neglected or refused to do so.
101. That the Officers, each of them could have aided or prevented the seizure and search of Plaintiff’s person, the Plaintiff’s false detention, the battery, the falsifying of evidence, and discrimination, the Defendant Police “Officers” refused or neglected to do so, and thereby violated Plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, “the Officers” and violated Plaintiff’s right under 42 U.S.C. §1986.
102. That as a direct proximate result of “the Officers” actions, the Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
103. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
104. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, Attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiff demands judgment against the Defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the twenty-first causes of action, plus attorney's fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
November 30, 2021

/S/ ROYCE RUSSELL

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34th Street 18 Fl.
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorney of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
November 30, 2021

/s/ ROYCE RUSSELL
Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BARKIM MEEKINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOSE MERCEDES SHIELD #884, POLICE OFFICERS JOHN DOE, JIM DOE, AND JAMES DOE (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE CURRENTLY UNKNOWN) ALL SUED IN THEIR CAPACITIES AS POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street Floor 18
New York, NY 10120
(718) 785 8890

To:	City of New York c/o Office of the Corporation Counsel 100 Church Street New York, NY 10007	Police Officer Mercedes Doe 1 Police Plaza New York, New York 10038	Police Officer John Doe 1 Police Plaza New York, New York 10038
	The New York City Police Department 1 Police Plaza New York, New York 10038	Police Officer Jim Doe 1 Police Plaza New York, New York 10038	Police Officer James Doe 1 Police Plaza New York, New York 10038

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: November 30, 2021

Signature

/s/ ROYCE RUSSELL
Royce Russell, Esq.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on